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NJ makes critical ruling on Uber, Lyft liability in crashes | Opinion

Michael J. Epstein Special to the USA TODAY Network

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Most people don't spend much time thinking about [insurance coverage](#) until something goes wrong.

If you're walking across a street in New Jersey and a vehicle strikes you, your first concern isn't whether the driver is using the family car, delivering food, transporting an Uber passenger or completing a Lyft ride. You aren't thinking about Title 17, the Transportation Network Company Act, or whether the vehicle falls into one statutory definition instead of another.

You're thinking about whether you're seriously hurt.

That's why the Appellate Division's late July decision in [Boone v. Unsatisfied Claim and Judgment Fund](#) deserves attention well beyond the insurance industry.

The legal question itself was surprisingly narrow. An uninsured pedestrian was struck by a Lyft driver who was actively transporting a passenger. The insurance carrier argued that because its policy was issued under New Jersey's Transportation Network Company Act, it wasn't obligated to provide Personal Injury Protection (PIP) medical benefits to the injured pedestrian.

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The court disagreed.

Instead, it looked beyond a single statute and examined New Jersey's insurance laws as a whole. Reading those laws together, the court concluded that the insurer was required to provide pedestrian PIP benefits. In my view, that wasn't simply the legally correct result. It was the only result that made practical sense.

Every few years, transportation evolves faster than the laws governing it.

Legislatures pass one statute. A new business model emerges. Another statute addresses part of the problem. Before long, courts are asked to determine how those laws fit together. That's nothing unusual. In fact, it's one of the judiciary's most important responsibilities.

Ride-sharing is simply the latest example.

Twenty years ago, few people imagined that millions of rides would be arranged through an app on a smartphone. Today, it's an ordinary part of daily life. The law has had to adapt, but adaptation shouldn't mean abandoning the principles that made New Jersey's no-fault system work in the first place.

Op-ed continues after gallery.

One of those principles is remarkably simple: People who are injured deserve prompt medical treatment.

The system can sort out reimbursement later.

One aspect of this decision that deserves more attention is how insurance disputes actually unfold.

Insurance companies rarely argue that someone wasn't injured. More often, they argue that another carrier, another policy, or another statutory scheme should bear the responsibility. Those are legitimate legal arguments. Attorneys have an obligation to make them when supported by the law.

But while those arguments are being made, life doesn't stop.

Emergency physicians still have to treat patients. Orthopedic surgeons still perform operations. Physical therapists still schedule appointments.

Medical bills continue arriving long before appellate briefs are filed.

That's precisely why New Jersey created its no-fault system decades ago. PIP was designed to get medical care moving without requiring every injured person to wait for years of litigation before treatment is paid for. Questions about ultimate responsibility can — and often do — come later.

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The court recognized something else that I think is easy to overlook.

Pedestrians don't choose the insurance arrangements of the vehicles traveling beside them.

The person crossing the street has no way of knowing whether the approaching driver is commuting home, driving for Lyft, delivering groceries or working for three different apps at the same time. The injuries caused by a collision don't change because the driver's phone happens to display a different logo.

Neither should access to medical benefits.

NJ court got it right on Uber, Lyft liability

Had Liberty Mutual prevailed, two pedestrians struck in identical accidents at the same intersection could have found themselves treated differently simply because one driver happened to be operating through a transportation network platform. That would have created an arbitrary distinction that is difficult to square with the broader purpose of New Jersey's insurance laws.

Courts are often criticized for interpreting statutes too broadly or too narrowly. In reality, many cases involve something much less dramatic. Judges are asked to reconcile multiple statutes enacted at different times, each addressing different

problems, while remaining faithful to the Legislature's overall intent.

That's exactly what happened here.

The Appellate Division did not rewrite New Jersey's insurance laws. It read them together instead of reading them in isolation. That distinction matters.

As transportation continues to change — with autonomous vehicles, robotaxis and technologies we probably haven't imagined yet — similar disputes are inevitable. New questions will arise. New insurance products will be created. Lawyers will continue debating where one statute ends and another begins.

They should.

That's how the law develops.

What shouldn't change is the principle underlying this decision. An innocent pedestrian shouldn't lose access to prompt medical benefits because insurers have identified an ambiguity created by evolving technology.

Most New Jersey residents will never read the Transportation Network Company Act. They'll never study Title 17 or memorize the statutes governing Personal Injury Protection benefits.

They simply assume that if they're lawfully walking down the street and a vehicle hits them, the insurance system will function the way it is supposed to.

In Boone, the Appellate Division made sure that expectation remained a reasonable one.

That's good statutory interpretation.

More importantly, it's good public policy.

Michael J. Epstein, a Harvard Law School graduate, is a trial lawyer and managing partner of [The Epstein Law Firm, P.A.](#), a law firm based in New

Jersey.